

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 201901536	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/19/2018 12:00 PM, Tuesday, 11/20/2018 12:00 AM	Location of Incident: en route to the 75th Precinct stationhouse; Brooklyn Central Booking	18 Mo. SOL 1/3/2021	Precinct: 75		
Date/Time CV Reported Tue, 02/19/2019 10:05 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 02/19/2019 10:05 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Manuel Velazquez	24223	934240	075 PCT
2. SGT Andres Rosario	03162	942477	BKLN CT
3. POM Nicholas Rossides	31621	955419	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Kester	17445	940332	075 PCT
2. SGT David Persson	04548	951049	075 PCT
3. SGT Terrance Smalls	02703	939481	075 PCT
4. SGT Kevin Tresham	02252	935868	075 PCT
5. SGT Matthew Benvenuto	00806	946777	BKLN CT
6. POF Erika Palazzo	31536	955289	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Manuel Velazquez	Abuse: On November 19, 2018, at the 75th Precinct stationhouse in Brooklyn, Police Officer Manuel Velazquez did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POM Nicholas Rossides	Abuse: On November 19, 2018, at Brooklyn Central Booking in Brooklyn, Police Officer Nicholas Rossides did not obtain medical treatment for § 87(2)(b)	B . Unfounded
C . SGT Andres Rosario	Abuse: On November 20, 2018, at Brooklyn Central Booking in Brooklyn, Sergeant Andres Rosario did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated

Case Summary

On February 19, 2019, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On November 19, 2018, at approximately 12:00 p.m., § 87(2)(b) was arrested at his home at § 87(2)(b) in Brooklyn after getting into a physical altercation with his mother and his sister. Present were his arresting officer, PO Manuel Velazquez, PO Nicholas Kester, and PO Erika Palazzo, all of the 75th Precinct. Once he was in PO Velazquez's custody, § 87(2)(b) allegedly requested medical attention, which PO Velazquez did not provide (**Allegation A- Abuse of Authority- Unsubstantiated**).

At approximately 6:00 p.m. on November 19, 2018, § 87(2)(b) was then taken to Brooklyn Central Booking by PO Nicholas Rossides of the 75th Precinct, and received at Brooklyn Central Booking by Sgt. Matthew Benvenuto of the Brooklyn Court Section. During this time, § 87(2)(b) allegedly asked PO Rossides for medical attention and was allegedly not provided with it (**Allegation B- Abuse of Authority- Unfounded**).

On November 20, 2018, while § 87(2)(b) was in Brooklyn Central Booking, he allegedly requested medical attention, which was allegedly not provided to him by Sgt. Andres Rosario of the Brooklyn Court Section (**Allegation C- Abuse of Authority- Unsubstantiated**).

Body-worn camera footage was obtained for this case from the cameras of PO Velazquez, PO Palazzo, and PO Kester.

Findings and Recommendations

Allegation (A) Abuse of Authority: On November 19, 2018, at the 75th Precinct stationhouse in Brooklyn, Police Officer Manuel Velazquez did not provide medical attention to § 87(2)(b)

It is not in dispute that at the time of his arrest, § 87(2)(b) had a torn anterior cruciate ligament (ACL), an injury in his knee, that he was wearing a knee brace at the time of the incident, and that he needed the assistance of PO Kester and PO Velazquez in order to walk from 902 Drew Street to the patrol vehicle, and from the patrol vehicle to the holding cells of the 75th Precinct stationhouse. It is not disputed that PO Velazquez did not offer § 87(2)(b) medical attention. § 87(2)(g)

§ 87(2)(b) stated that he requested that PO Velazquez take his medication with him while he was in his home, and that he requested medical attention both en route to the police vehicle and at the 75th Precinct stationhouse, while he was in the holding cells. PO Velazquez told § 87(2)(b) that he could be taken to the hospital once he went to Brooklyn Central Booking.

The individual in the holding cells at the same time as § 87(2)(b) § 87(2)(b) did not respond to CCRB contact attempts (Board Review 02).

PO Velazquez denied that § 87(2)(b) ever asked for medical attention while § 87(2)(b) was in his custody. He did not remember if there were any conversation with § 87(2)(b) about medical attention while § 87(2)(b) was in the police vehicle. He denied having any conversation with § 87(2)(b) about medical attention at the front desk of the stationhouse, or in the holding

cells. He denied ever offering § 87(2)(b) medical attention, he said, because § 87(2)(b) never asked for it. When the investigation showed PO Velazquez his BWC footage, which showed a discussion between § 87(2)(b) and PO Velazquez about § 87(2)(b) obtaining medical attention, PO Velazquez said that § 87(2)(b) was referring only to his prior appointment, and not to obtaining medical treatment while in police custody.

PO Kester was not aware of § 87(2)(b) ever requesting medical attention, and said that besides § 87(2)(b) being in “general pain,” throughout the arrest, he did not seem to need it.

Arrest Report # § 87(2)(b) lists § 87(2)(b)'s condition as “INJ-RMA” (Board Review 03). When asked why this indication was made on his arrest report, PO Velazquez stated that it was because § 87(2)(b) had a pre-existing injury, and that he could put “refused medical attention” if a prisoner simply did not ask for medical attention. He did not remember whether he nor any other officer offered medical attention, and said that § 87(2)(b) also could have gotten medical attention from EMS when he arrived at Brooklyn Central Booking.

The digital copy of Medical Treatment of Prisoner form § 87(2)(b), completed by PO Velazquez and finalized by Lt. Jason Berkowitz, the ICO of the 75th Precinct on March 21, 2019, some months after the incident, indicated that § 87(2)(b) declined medical attention at the 75th Precinct (Board Review 04). There was no handwritten copy of this document from the 75th Precinct that bears § 87(2)(b)'s signature; the handwritten copy of this document was stored in the Brooklyn Court Section, was completed by a PO Nicholas Rossides, § 87(2)(b)'s transporting officer, and indicated that § 87(2)(b) refused medical attention specifically in Brooklyn Central Booking (Board Review 05).

PO Velazquez's BWC footage shows a conversation between § 87(2)(b) and PO Velazquez in the police vehicle that takes § 87(2)(b) to the 75th Precinct stationhouse. At the 11:59:21 mark, immediately explaining that he has a torn ACL, § 87(2)(b) mentioned that he was missing a doctor's appointment, and said something that involved “want medical treatment.” At the 11:59:25 mark in the video, PO Velazquez asked, “The hospital?” to which § 87(2)(b) said, “I'm trying to go to my medical appointment today, but they kept my ID.”

At the 12:08:15 mark of PO Velazquez's BWC footage, Sgt. Persson, one of the desk officers at the 75th Precinct, tells PO Velazquez to complete a Medical Treatment of Prisoner Form, and note that § 87(2)(b)'s injury was pre-existing (Board Review 06).

§ 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation (B) Abuse of Authority: On November 19, 2018, at Brooklyn Central Booking, Police Officer Nicholas Rossides did not obtain medical attention for § 87(2)(b) [REDACTED]

It is undisputed that PO Rossides took § 87(2)(b) [REDACTED] from the 75th Precinct stationhouse to Brooklyn Central Booking at 4:25 p.m. on November 19, 2018. § 87(2)(g) [REDACTED]
[REDACTED]

During § 87(2)(b) [REDACTED]'s sworn statement, taken on February 28, 2019, § 87(2)(b) [REDACTED] said that he asked an officer at Brooklyn Central Booking who was not wearing a dark blue uniform for medical attention. In a follow-up phone statement on August 7, 2019, § 87(2)(b) [REDACTED] stated that he requested medical attention from PO Rossides, the officer who transported him between the precinct stationhouse and Brooklyn Central Booking—multiple times, first when he was placed in the van in an uncomfortable position, and then when he arrived at Brooklyn Central Booking. He denied that he ever signed anything that indicated a refusal to receive medical attention. He denied that he ever interacted with a sergeant at Brooklyn Central Booking. He said that whenever he asked for medical attention, he was told that his arraignment would be delayed (Board Review 08).

PO Rossides did not have an independent recollection of this incident, and neither did Sgt. Benvenuto, the intake supervisor for Brooklyn Central Booking. During their interviews, they viewed copies of the handwritten copy of Medical Treatment of Prisoner Form § 87(2)(b) [REDACTED]. They both recognized their handwriting on this document, and concluded that they assisted in completing it. This document did not prompt any further recollection of what occurred during § 87(2)(b) [REDACTED]'s processing.

The handwritten copy of Medical Treatment of Prisoner Form § 87(2)(b) [REDACTED] was completed by PO Rossides and Sgt. Benvenuto at approximately 7:30 p.m. on November 19, 2018. This document included § 87(2)(b) [REDACTED]'s signature in a space marked “prisoner signature” to indicate that he “refused medical aid.” It acknowledged his use of a leg brace for his torn ACL, and recommended that he be separated from the general population for his injury (Board Review 05).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be closed as **unfounded**.

Allegation (C) Abuse of Authority: On November 20, 2018, at Brooklyn Central Booking, Sergeant Andres Rosario did not obtain medical treatment for § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
During § 87(2)(b) [REDACTED]'s sworn statement on February 28, 2019, § 87(2)(b) [REDACTED] stated that he requested medical attention from officers who were not wearing dark blue uniforms. He did not

otherwise describe these uniforms. § 87(2)(b) stated that he continued to ask officers guarding him in the Brooklyn Court Section for medical attention for “hours” after he arrived. He said that EMS came to the holding cell at approximately 2:00 a.m. to remove another prisoner, but that he was never aware of EMS coming for him. He denied asking for medical attention between 2:00 a.m. and 6:00 a.m. when he said that he was sleeping (Board Review 08). § 87(2)(b) refused to sign HIPAA forms, which would have enabled the investigation to view the Pre-Arrestment Screening form customarily completed at Central Booking.

Sgt. Rosario had no independent recollection of this incident. He stated that when officers are notified that a prisoner wants medical attention, he notifies the precinct of arrest, which sends their own officers to escort a prisoner to the hospital.

Sgt. Tresham had no independent recollection of this incident. He said that if a prisoner from Central Booking needed medical attention, then he would send officers from his command to accompany the prisoner to the hospital.

A copy of the arraignment history for Arrest § 87(2)(b) provided to the investigation by Sgt. Terrance Smalls of the 75th Precinct during his CCRB interview, indicated that Sgt. Rosario notified Sgt. Tresham of § 87(2)(b)'s request to go to the hospital at 4:54 a.m. There is no notation on this document that § 87(2)(b) was in fact taken to the hospital, or that EMS dispatched to him (Board Review 09). The entry on the 75th Precinct command log that includes his arrest similarly has no indication that he was taken to the hospital (Board Review 10).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

[REDACTED] It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 11).
- PO Velazquez has been a member of service for 15 years. Two prior complaints, and four prior FADO allegations have been filed against him. None has been substantiated.
 - § 87(2)(g)
- PO Rossides has been a member of service for 6 years. This is the first CCRB complaint filed against him.
 - § 87(2)(g)
- Sgt. Rosario has been a member of service for 13 years. Two prior complaints, with four previous allegations, have been filed against him. One allegation has been substantiated.
 - In case 200807055, the CCRB substantiated allegations of a retaliatory summons, and the Board recommended Charges. The NYPD did not impose discipline.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On June 3, 2019, the New York City Office of the Comptroller reported that there was no Notice of Claim filed in regards to this case (Board Review 12).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

